

9:00 AM

Line 2

22-CIV-00069 MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
ERNEST EGAN

PRO SE
JOEL M. WESTBROOK

Plaintiff's Motion to Deem Requests for Admission Admitted; Request for Sanctions

TENTATIVE RULING:

Plaintiff Marita Zweifler's ("Zweifler") Motion to Deem Requests for Admission Admitted and Request for Sanctions are DENIED.

On April 14, 2026, Zweifler filed a special motion to strike (SLAPP) under Code of Civil Procedure ("CC") Section 425.16. In pertinent part, that code provides:

All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.

CCP § 425.16(g)

There was no prior motion to open discovery after the SLAPP motion was filed. On April 22, 2026, Zweifler then served the Requests for Admissions ("RFA") that are at issue in this motion. Defense counsel attempted to convince Zweifler to withdraw this motion, but Zweifler never responded. Westbrook Decl., ¶ 10-11, Exh. D. The automatic stay on discovery is expressly written into the code, and it is indeed automatic and self-executing. *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, 1125. This Court had not issued a past Order to open discovery which is necessary under these circumstances for Zweifler to have served the RFA's, and if no response, to then move to compel/admit the RFA's. Defendant argues that "[t]his motion is one of four meritless motions that Zweifler has filed." The Court agrees that this motion is indeed meritless and it is DENIED. Because the motion fails, so fails her related request for sanctions.

Conversely, Defendant is entitled to some monetary sanctions, which were duly noticed in the opposition and attorney declaration. Opp., pg. 4-5, ¶ D; Westbrook Decl., ¶ 12-13. CCP Section 2023.030 provides:

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses,

including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

CCP § 2023.030. See also, CCP § 2023.010; CCP §§ 2033.280 and 2033.290.

Defendant seeks sanctions for opposing this motion in a total of \$4,950.00, for 11 hours of claimed work at the hourly rate of \$450.00 per hour. Westbrook Decl., ¶ 12-13. The hourly rate is reasonable, but the time spent is not. The Court therefore only awards 6 hours or \$2,700.00 in sanctions against Zweifler, to be paid to Defense counsel within thirty (30) days of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

22-CIV-00069 MARITA ZWEIFLER VS. ERNEST EGAN, ET AL

MARITA ZWEIFLER
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JOEL M. WESTBROOK

Plaintiff's Motion to Vacate the November 14, 2025 Order Setting Aside Default Judgment

TENTATIVE RULING:

Plaintiff Marita Zweifler's ("Zweifler") Motion to Vacate the November 14, 2025 Order Setting Aside Default Judgment is DENIED.

Plaintiff's only legal basis for this motion is under Code of Civil Procedure ("CCP") Section 473(d), which provides:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.
CCP § 473(d)

Plaintiff then goes on to re-argue the merits of the past motion to set aside default that was heard on November 14, 2025. At the time Zweifler was represented by attorney Nathaniel Kelly who filed a written opposition to the motion on October 31, 2025. In other words, the motion was fully briefed on both sides, the Court had issued its tentative ruling to grant, Mr. Kelly did not oppose the tentative and it was then adopted without argument. See, Minute Order 11/14/2025. In all respects, Zweifler's current motion is an untimely motion for reconsideration which is only allowed within 10 days after service of written notice of entry of an order. CCP § 1008(a). Here the Court filed and served the Order granting the motion to set aside default on December 2, 2025. See, Order and Affidavit of Service, 12/2/2025. Zweifler then filed this motion on July 14, 2026, some seven months too late. It is thus procedurally DENIED as improper and untimely.

On the merits, Zweifler also does not present any good cause for the Court to reconsider its prior ruling. Again, the prior motion was fully briefed and then adjudicated. There was no clerical mistake in its entry under CCP Section 473(d) that needs correction. Thus, substantively, the motion is also DENIED.

Defendant's request discretionary sanctions under CCP Section 1008(d), however, that section allows the Court the option to seek contempt proceedings with sanctions. Though the Court does agree that this motion is meritless, the Court does not find it contemptuous and therefore no sanctions are awarded.
